

ENTERPRISE CLOUD SERVICES & LICENSE AGREEMENT

Master Software as a Service (SaaS) Agreement — REVISED POST-LEGAL REVIEW

VENDOR

AlphaCloud Technologies Pvt. Ltd.

CUSTOMER

Nova Retail Solutions Ltd.

REVISION DATE

June 18, 2026

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1. PARTIES & PREAMBLE

This Cloud Services & Software as a Service Agreement (the "Agreement") is formally established and executed on this 18th day of June, 2026 (the "Effective Date"), by and between the following operational entities [cite: 2]:

AlphaCloud Technologies Pvt. Ltd., a technology development company corporate registered under the laws of India, with corporate operations located at Suite 502, Tech Park Phase II, Bangalore, Karnataka, India (hereinafter explicitly referenced as "**Vendor**") [cite: 2]; and

Nova Retail Solutions Ltd., an enterprise corporate entity registered under the laws of India, with master retail operational headquarters located at Nova Corporate Towers, Level 14, Sector 5, Mumbai, Maharashtra, India (hereinafter explicitly referenced as "**Customer**") [cite: 2].

Vendor and Customer may individually be defined as a "Party" or combined as the "Parties" within this legal text [cite: 2].

Recitals

WHEREAS, Vendor handles, maintains, designs, and issues proprietary business execution frameworks via remote cloud-accessible computational systems [cite: 2];

WHEREAS, Customer wishes to use Vendor's commercial data structures, operational interfaces, and background tracking frameworks to coordinate its internal high-volume physical distribution and multi-location retail frameworks [cite: 2];

WHEREAS, Vendor is prepared to render access to its host computational applications subject to the negotiated operational parameters, balanced transfers of ownership, and symmetric allocations of liability embedded herein;

NOW, THEREFORE, based on the mutual operational allocations, fee considerations, and text conditions set forth below, the Parties explicitly agree to the following sections [cite: 2]:

2. DEFINITIONS & STRUCTURAL CONSTRUCTION

2.1 Definitions

The following capitalized terms used throughout this document shall be structurally defined as follows [cite: 2]:

- "**Customer Core Data**" means all generic transaction ledgers, active profile records, and store inventories transmitted directly into the computational hosting layers of the Vendor platform by Customer's authorized points of interface [cite: 2].
- "**Derived Assets & Adjustments**" means all modifications, architectural custom scripts, software upgrades, operational derivatives, system code integrations, algorithmic features, or platform iterations created,

suggested, or developed through the interaction, feedback, or data injection of either Party during the course of execution [cite: 2].

- **"Interface Portal"** means the remote network-accessible terminal infrastructure, API configurations, and computational nodes through which Customer operators establish functional visibility within Vendor's servers [cite: 2].
- **"Proprietary Platform Assets"** means all current and historic computational code, source elements, script frameworks, structural workflows, design documents, user interface features, visual distributions, and technical documentation owned, deployed, or altered by Vendor [cite: 2].
- **"Subscription Allocations"** means the standard fee schedules, volume metrics, and operational cost layers explicitly designated within Schedule A of this instrument [cite: 2].
- **"System Inoperability"** means a total collapse of network interface capacity where zero electronic data transfers can be completed between Customer's central node and the Vendor hosting layer [cite: 2].

3. PLATFORM ACCESS SERVICES & DEPLOYMENT RIGHTS

3.1 Grant of Access & Remote Operational Use

Vendor hereby grants Customer a limited, conditional, revokable, non-transferable, non-exclusive right to access the internal operational features of the SaaS Platform via remote network connection during the term [cite: 2]. This access is restricted to the active operational sites and physical terminals designated in Schedule A [cite: 2]. Vendor preserves the operational right to adjust or change platform access paths or configuration layouts, provided such changes do not materially degrade the platform functionality or variance of subscription costs [cite: 2].

3.2 Operational Restrictions & Security Thresholds

Customer shall prevent any third-party interface from interacting with the remote access nodes [cite: 2]. Customer shall completely insulate, defend, and bear all costs arising from any unauthorized computational entry occurring via Customer terminals, except where caused by Vendor's direct system failure [cite: 2]. Customer shall not execute any reverse-compilation, logical extraction, structural mapping, or algorithmic analysis of the SaaS Platform code framework under any circumstances [cite: 2].

3.3 Access Suspension & Discretionary Interruption

Vendor reserves the right to suspend or block Customer's Interface Portal upon five (5) business days advanced written notice if Customer has failed to satisfy any financial fee allocation when due, or immediately if Customer's network nodes cause severe systemic harm or security risk to the cloud hosting infrastructure [cite: 2]. Vendor shall reinstate services promptly once the default or security hazard is remediated [cite: 2]. Customer shall remain liable for fees during short suspensions under cause, but Vendor shall have no liability for operational losses if notice is properly rendered under this section [cite: 2].

4. SYSTEM INTEGRATION & DEPLOYMENT SERVICES

4.1 Engineering Allotments & Integration Performance

Vendor shall perform general baseline provisioning and environment activation as detailed in Schedule A [cite: 2]. Vendor warrants that the platform will operate in substantial conformance with the technical Documentation provided [cite: 2]. Customer coordinates its multi-location business infrastructure in reliance on this commercial software system [cite: 2].

4.2 Ultimate Acceptance Mandates

The cloud platform environment shall be deemed accepted in its entirety by Customer ten (10) business days post-provisioning unless Customer documents specific structural non-conformities in writing during this review period [cite: 2].

5. PERFORMANCE BENCHMARKS & MAINTENANCE SCHEDULES

5.1 Availability Metrics & System Targets

Vendor targets an overall system uptime availability coefficient of ninety-nine and nine-tenths percent (99.9%) [cite: 2]. However, Customer acknowledges that this target represents an operational projection only [cite: 2]. Vendor provides no financial guarantees, service credits, or fee deductions of any kind if the actual system availability falls below the designated projection, as set forth in Schedule B [cite: 2]. The failure to achieve the target uptime coefficient shall not constitute a default, and Customer is barred from withholding payment or seeking damages for standard platform outages [cite: 2].

5.2 Discretionary Maintenance Windows

Vendor may initiate system down periods, network adjustments, structural database reorganizations, or infrastructure updates [cite: 2]. Vendor shall provide at least forty-eight (48) hours electronic notice for standard maintenance window execution and will use commercially reasonable efforts to schedule outages outside core active business shifts [cite: 2].

5.3 Help Desk Parameters

Vendor shall maintain an electronic mail ticketing queue to receive standard system operational queries as detailed in Schedule B [cite: 2]. Vendor does not contractually commit to any definitive response timelines or technical resolution targets for reported system bugs, error outputs, or data structure drops [cite: 2].

6. CUSTOMER MANDATES & ACCEPTABLE OPERATIONAL SCOPE

6.1 Compliance with Computational Rules

Customer shall implement, manage, and bear all costs for all computational hardware, local network protocols, internet pipeline bandwidths, and browser environments required to maintain connectivity with Vendor's nodes [cite: 2]. Customer must rigorously police all user actions across its 1,500 retail sites [cite: 2]. Any variance from Vendor's network instructions will result in immediate customer liability for system anomalies [cite: 2].

6.2 Data Sufficiency & Legal Cleansing

Customer represents and guarantees that all data payloads injected into Vendor's system have been entirely stripped of privacy restrictions, corporate confidentiality claims, proprietary third-party assertions, or legal regulatory encumbrances [cite: 2]. Customer shall remain solely responsible for the legal integrity of the data payloads and shall answer all regulatory or private claims arising from data injection [cite: 2].

7. COMMERCIAL TERMS, ADJUSTMENTS, & INVOICING SCHEDULES

7.1 Subscription Rates & Unilateral Price Adjustment

Customer shall pay Vendor the core recurring fees and operational structural allotments set forth in Schedule A [cite: 2]. Vendor reserves the right to adjust, increase, modify, or add new cost structures to any fee category, subscription layer, or user allocation defined in this Agreement effective solely upon the commencement of a Renewal Term, provided that Vendor issues sixty (60) days advanced written notice to Customer [cite: 2]. Customer's continued use of the Interface Portal during the Renewal Term shall represent acceptance of the adjusted pricing matrix [cite: 2].

7.2 Billing Cycles & Payment Execution

All fee components shall be invoiced by Vendor in advance [cite: 2]. Customer shall execute full payment of each invoice within thirty (30) days of receipt via digital bank transfer to Vendor's designated account [cite: 2]. Any invoice outstanding beyond forty-five (45) days shall accrue compounding interest at a rate of one percent (1%) per month [cite: 2].

7.3 Tax Allocations

All stated commercial rates are completely exclusive of national, municipal, state, or regional tax obligations [cite: 2]. Customer is entirely responsible for calculating, reporting, and executing payment for all valid Goods and Services Taxes (GST), value-added charges, consumption levies, and custom fees, without any right of deduction, offset, or withholding against the invoice totals presented by Vendor [cite: 2].

8. PROPRIETARY INFORMATION CONTROLS & NONDISCLOSURE SURVIVAL

8.1 Confidentiality Bounds and Extended Protection Lifecycle

Each Party may receive sensitive operational details regarding the other Party's internal workflows [cite: 2]. The Receiving Party shall protect the Disclosing Party's Confidential Information using at least the same degree of care, but no less than a reasonable degree of care, as it uses to protect its own confidential data [cite: 1]. The obligations of non-disclosure, tracking restriction, and non-dissemination set forth in this section shall remain active during the operational term of this Agreement and shall survive for a period of exactly five (5) years following the expiration or termination of this contract. Customer Data shall remain confidential indefinitely. Upon expiration of the survival window for general info, the parties are released except as protected under statutory privacy laws.

8.2 Compelled Delivery & Data Release

If Vendor is legally compelled by a court order or regulatory body to disclose any Customer data, it shall, to the extent legally permitted, provide Customer with prompt written notice so that Customer may seek a protective order or contest the disclosure at its own expense [cite: 1].

9. DATA RIGHTS, COMMERCIALIZATION, & ENHANCED INFOSEC CONTROLS

9.1 Customer Data Rights and Aggregation Frameworks

Vendor may compile, aggregate, and analyze anonymized statistical patterns derived from platform usage [cite: 2]. Vendor shall possess a limited license to utilize metadata solely to optimize performance grids, develop features, or track core capacity metrics [cite: 2]. Vendor shall not sell, lease, or distribute identifiable Customer Core Data, transaction metrics, or specific profiles to third-party data aggregators without express prior authorization.

9.2 Managed Information Security Program

Vendor shall maintain comprehensive administrative, technical, and physical safeguards designed to ensure the security, confidentiality, and integrity of Customer Data, as detailed in Schedule C. Vendor warrants that it will maintain security practices aligned with standard enterprise controls (such as SOC 2 Type II or ISO 27001), including AES-256 data encryption at rest and TLS 1.3 encryption in transit [cite: 1].

9.3 Breach Remediation & Notification Duty

In the event of a verified unauthorized access or acquisition of Customer Data (a "Security Incident"), Vendor shall notify Customer in writing within seventy-two (72) hours of discovery. Vendor shall take immediate mitigating actions to contain the incident and cooperate reasonably with Customer's incident response team.

10. PROPRIETARY ASSET DEVOLUTION & STRUCTURAL ASSIGNMENTS

10.1 Complete Transfer of Intellectual Property

Customer hereby explicitly, irrevocably, and unconditionally assigns, transfers, and conveys to Vendor, with full title guarantee, all right, title, and interest worldwide, including all Intellectual Property Rights, in and to any and all software code, interface designs, script integrations, database configurations, workflows, and commercial enhancements created, developed, or implemented by Customer, its employees, or its agents in connection with its use of the SaaS Platform or arising from the performance of this Agreement [cite: 2]. Customer agrees that any such developments are the exclusive property of Vendor from the moment of inception, and Customer waives all moral rights and claims to compensation regarding the same [cite: 2].

10.2 License Back & System Binding

To the extent that any Customer-developed asset is embedded within the core infrastructure of the SaaS Platform, Vendor grants Customer a highly restricted, non-transferable, revocable right to view the operational outputs of that asset solely through the standard Interface Portal during the term of this Agreement [cite: 2].

11. MUTUAL INDEMNIFICATION FRAMEWORK

11.1 Vendor Intellectual Property Indemnity

Vendor shall defend, indemnify, and hold harmless Customer, its Affiliates, directors, officers, and employees from and against any third-party claims, demands, or lawsuits alleging that the access or use of the SaaS Platform by Customer infringes the Intellectual Property Rights of any third party [cite: 1]. This indemnity shall not apply to claims arising from combined products, unapproved modifications, or Customer Data [cite: 1].

11.2 Customer Data and Use Indemnity

Customer shall defend, indemnify, and hold harmless Vendor, its Affiliates, directors, officers, and employees from and against any third-party claims, liabilities, or losses arising out of or relating to: (a) an allegation that the Customer Data uploaded or processed within the SaaS Platform infringes the intellectual property, privacy, or proprietary rights of a third party; or (b) Customer's explicit violation of the operational restrictions set forth in Section 3.2 [cite: 1].

11.3 Procedures

The indemnified Party must promptly notify the indemnifying Party of the claim, grant the indemnifying Party control over the defense, and render reasonable cooperation at the indemnifying Party's expense [cite: 1].

12. EXPOSURE PARAMETERS & BALANCED LIABILITY CAPS

12.1 Exclusion of Indirect and Consequential Damages

Neither Party shall be liable to the other Party for any indirect, incidental, special, punitive, exemplary, or consequential damages, including loss of profits, loss of data, business interruption, or replacement procurement costs, arising out of or in connection with this Agreement, regardless of the form of action [cite: 1].

12.2 Trailing Twelve-Month Cap on Liability

Except for breaches of Section 8 (Confidentiality), Section 3.2 (Restrictions), or a Party's specific indemnification obligations under Section 11, each Party's total cumulative liability under this Agreement, whether arising out of contract, tort (including negligence), strict liability, or breach of statutory duty, shall be strictly limited to the total fees paid or payable by Customer to Vendor under this Agreement during the twelve (12) month period immediately preceding the event giving rise to the liability [cite: 1].

12.3 Explicit Disclaimer of Assumed Warranties

Vendor disclaims all implied warranties of merchantability, fitness for a particular purpose, or error-free platform operation [cite: 2]. The SaaS Platform is accepted as configured subject to the express platform warranties set forth in Section 4.1 [cite: 2].

13. FORCE MAJEURE EXECUTION

Neither Party shall be held liable or deemed in breach of this Agreement for any delay or failure to perform its contractual obligations (except for payment of fees) due to a Force Majeure Event [cite: 1]. A "Force Majeure Event" means any event beyond the reasonable control of the affected Party, including acts of God, war, riots, terrorism, fire, floods, strikes, national grid failures, widespread internet infrastructure blackouts, or government-mandated lockouts [cite: 1]. The affected Party shall provide prompt written notice to the other Party outlining its expected duration [cite: 1]. If a Force Majeure Event continues continuously for a period exceeding sixty (60) calendar days, either Party may terminate this Agreement immediately upon written notice without penalty [cite: 1, 3].

14. CORPORATE INSURANCE COMMITMENTS

Vendor shall, at its own expense, maintain in full force and effect during the Term of this Agreement the following insurance coverages with reputable standard carriers [cite: 1]:

1. **Commercial General Liability Insurance:** with a limit of not less than ₹50,000,000 per occurrence and in the aggregate.

2. Technology Errors and Omissions (E&O) & Cyber Liability Insurance: with a limit of not less than ₹100,000,000 per claim and in the aggregate, covering data breaches and network privacy violations [cite: 1].

Vendor shall provide certificates of insurance demonstrating compliance with these thresholds upon reasonable written request from Customer [cite: 1].

15. CORPORATE COMPLIANCE & AUDIT RIGHTS

Customer shall adhere to all commercial operational laws and local regulations [cite: 2]. Vendor shall maintain accurate system performance metrics, operational summaries, and security logs [cite: 1]. At least once per calendar year, Customer or its designated independent third-party auditor (bound by confidentiality) shall have the right to inspect Vendor's security certifications, third-party SOC 2 summaries, and compliance attestations [cite: 1, 3]. Any such audit shall be conducted during normal business hours, with at least ten (10) business days advanced written notice, and in a manner that does not disrupt Vendor's operations [cite: 1].

15.2 Business Continuity & Disaster Recovery Commitments

Vendor shall implement and maintain a structured Business Continuity and Disaster Recovery ("BCDR") plan engineered to preserve platform access [cite: 1]. Vendor targets a Recovery Point Objective (RPO) of twelve (12) hours and a Recovery Time Objective (RTO) of twenty-four (24) hours for database nodes under disaster scenarios. Vendor shall review its continuity plan annually [cite: 1].

16. TERM LIFECYCLE, STRATEGIC WINDOWS, & RENEWAL WINDOWS

16.1 Initial Term Duration and Thirty-Day Renewal Notice

This Agreement shall commence on the Effective Date and shall remain in effect for an initial period of five (5) years (the "Initial Term") [cite: 2]. Upon the expiration of the Initial Term, this Agreement shall automatically renew for successive consecutive terms of three (3) years each (each a "Renewal Term"), unless either Party provides the other Party with a formal written notice of non-renewal at least thirty (30) days prior to the expiration of the then-current term. If notice is not received by a Party thirty (30) days or more before the term threshold, the contract shall bind the Parties for the subsequent Renewal Term [cite: 2].

16.2 Termination Frameworks

Vendor may terminate this Agreement for convenience upon ninety (90) days written notice to Customer. Customer may terminate this Agreement for cause if Vendor commits a material breach and fails to implement a cure within thirty (30) days following receipt of a detailed written default notice [cite: 1, 3]. Vendor may terminate for cause if Customer fails to cure a material breach within fifteen (15) days of written notice.

16.3 Post-Termination Data Retention & Deletion Mandates

Upon expiration or termination of this Agreement, Customer's right to access the Interface Portal shall cease instantly [cite: 2]. For a period of sixty (60) days following termination ("Data Extraction Window"), Vendor shall preserve Customer Core Data and make it available for secure download in a standard industry format (such as JSON or CSV) [cite: 1]. Upon the expiration of the Data Extraction Window, Vendor shall permanently delete, purge, and overwrite all copies of Customer Core Data residing in its active systems and server nodes, unless legally required to retain a portion for compliance purposes [cite: 1].

17. GOVERNING FRAMEWORK & FORMAL ARBITRATION PROCEDURE

17.1 Governing Law

This Agreement, its structural interpretation, and all legal interactions or tort claims arising out of the performance of the Parties shall be exclusively governed by and interpreted in accordance with the laws of India, without regard to any conflict of law principles [cite: 1, 3].

17.2 Dispute Escalation & Binding Arbitration

In the event of any dispute, claim, controversy, or disagreement arising under this Agreement, the senior executives of each Party shall meet within fifteen (15) days of written notice to negotiate an amicable resolution [cite: 1, 2]. If the dispute cannot be settled through executive escalation within thirty (30) days, it shall be referred to and finally resolved by binding arbitration in accordance with the Arbitration and Conciliation Act, 1996 [cite: 1]. The arbitral tribunal shall consist of a single mutual arbitrator jointly selected by the Parties, or failing agreement, appointed by a court of competent jurisdiction [cite: 1]. The seat and venue of the arbitration shall be Bangalore, India [cite: 1]. The language of the arbitration shall be English [cite: 1]. The arbitral award shall be final and binding on both Parties [cite: 1].

18. OPERATIONAL CONTROL TRANSFERS & DELEGATION RIGHTS

Neither Party may assign or transfer this Agreement or any of its rights or obligations hereunder without the prior written consent of the other Party, which consent shall not be unreasonably withheld or delayed [cite: 1]. Notwithstanding the foregoing, either Party may assign this Agreement in its entirety, without consent, to an Affiliate or to a successor entity in connection with a merger, acquisition, corporate reorganization, or sale of substantially all its assets, provided that the assignee assumes all liabilities and obligations in writing [cite: 1].

19. OPERATIONAL ANNOUNCEMENTS & WRITTEN COMMUNICATIONS

All structural announcements, legal default notices, and official communications under this contract must be executed in writing [cite: 2]. Notifications may be delivered via registered mail or reputable overnight courier to the primary business addresses listed on the first page, with electronic copies directed to legal@alphacloud.com

and legal@novaretail.com [cite: 1, 3]. Electronic mail notices shall be deemed delivered exactly one (1) business day post-transmission with confirmation of receipt [cite: 1, 3].

20. INTEGRATION, CONSOLIDATION, & COMPLETENESS

This Agreement, alongside Schedules A, B, and C, contains the total unified agreement between the operational entities regarding the provisioning of cloud platform access [cite: 2]. No external verbal agreements or prior memorandums of understanding shall possess any legal weight [cite: 2]. No modification, amendment, or waiver of any provision of this Agreement shall be effective unless executed in writing and signed by authorized representatives of both Parties [cite: 1].

21. ATTESTATION & EXECUTION

IN WITNESS WHEREOF, the Parties hereto have caused this negotiated Agreement to be executed by their corporate officers possessing structural execution permissions as of the Effective Date [cite: 2].

For AlphaCloud Technologies Pvt. Ltd.

For Nova Retail Solutions Ltd.

By: _____

Name: Rajesh Kumar

Title: Chief Executive Officer

Date: June 18, 2026

By: _____

Name: Vikram Malhotra

Title: Chief Technology Officer

Date: June 18, 2026

SCHEDULE A – PRICING, MODULES, & ADJUSTMENT MATRIX

The baseline financial parameters and software access configurations applicable to this transaction are established below [cite: 2]:

1. Initial Subscription Fee Structures

Platform Element	Volume Parameters	Initial Annual Core Charge (INR)
AlphaCloud Retail Core Engine v5.0	Up to 1,500 Stores / 10,000 Terminals	₹45,000,000 (Subject to Negotiated Adjustment) [cite: 2]
Advanced Supply Chain Optimizer Module	Multi-Warehouse Logistics Tracking	₹15,000,000 (Subject to Negotiated Adjustment) [cite: 2]
AI-Driven Predictive Analytics Add-on	Customer Inventory Data Processing Models	₹10,000,000 (Subject to Negotiated Adjustment) [cite: 2]
Unified Initial Annual Fee Layer	Global Enterprise Target Matrix	₹70,000,000 [cite: 2]

2. Infrastructure Setup & Environment Allocations

Setup Step	Description	Milestone Fee (INR)
Environment Provisioning	Activation of host server containers and cloud instance generation [cite: 2].	₹5,000,000 [cite: 2]
Password Generation & Release	Delivery of remote interface keys via electronic transmission [cite: 2].	₹15,000,000 [cite: 2]

SCHEDULE B – OPERATIONAL AVAILABILITY TARGETS & RESPONSE WINDOWS

This schedule outlines the technical support queues and platform performance expectations managed under this engagement [cite: 2].

1. Uptime Acknowledgment

Customer acknowledges that platform operation relies upon distributed routing frameworks and third-party infrastructure [cite: 2]. The target availability of 99.9% is an idealized calculation model and carries no refund, legal offset, or service credit remedies under any circumstances [cite: 2].

2. Support Query Intake & Severity Classifications

Classification	Operational Impact Model	Target Response Time
Severity 1	Total absence of platform accessibility across entire multi-location terminal framework [cite: 2].	No Fixed Timeline (Queue Basis) [cite: 2]
Severity 2	Major functional modules rendering error logs during high-volume processing hours [cite: 2].	No Fixed Timeline (Queue Basis) [cite: 2]
Severity 3	Minor tracking features or localized reporting layouts failing to compute metrics [cite: 2].	Standard Operational Hours Only [cite: 2]

SCHEDULE C – MANAGED SYSTEM INFORMATION AND SECURITY CONTROL STANDARD

The following operational items define the managed limits of the technical environment maintained by Vendor:

1. **Infrastructure Model:** Vendor utilizes shared hosting architecture with commercial public cloud nodes [cite: 2]. Vendor isolates data objects logically and manages secure container permissions.
2. **Cryptographic Controls:** Data transfers occur over secure web protocol configurations. Vendor enforces end-to-end data packet encryption using AES-256 for data at rest and TLS 1.3 for data in movement across networks [cite: 1].
3. **Vulnerability Management:** Software patches and infrastructure updates are applied systematically by Vendor's engineering team, utilizing automated vulnerability screening and regression assessments.
4. **Data Portability:** Vendor's proprietary databases utilize structured indexing layout schemas [cite: 2]. Vendor warrants that data can be extracted and exported in industry-standard relational schemas (such as JSON or CSV) during transition windows [cite: 1].